

THINKNYX TECHNOLOGIES GLOBAL HR POLICY & COMPLIANCE MANUAL

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1. COMPANY OVERVIEW AND MISSION

1.1 About THINKNYX Technologies

THINKNYX Technologies is a global leader in artificial intelligence and machine learning solutions, founded in 2015. We operate in 28 countries with over 3,500 employees across engineering, sales, operations, and support divisions. Our mission is to democratize AI technology and make it accessible to enterprises worldwide.

1.2 Core Values

Our organizational culture is built on five core values:

- **Innovation:** We encourage creative thinking and bold experimentation.
- **Integrity:** We maintain the highest standards of ethical conduct.
- **Collaboration:** We believe diverse teams achieve extraordinary results.
- **Excellence:** We pursue perfection in everything we do.
- **Accountability:** We take responsibility for our actions and decisions.

1.3 Global Presence

THINKNYX operates regional offices in:

- North America: Headquarters in San Francisco, CA with offices in New York, Toronto, and Mexico City
- Europe: Regional hub in London with offices in Berlin, Paris, Amsterdam, and Dublin
- Asia-Pacific: Regional center in Singapore with offices in Sydney, Tokyo, and Bangalore
- Middle East and Africa: Growing presence in Dubai, Tel Aviv, and Johannesburg

1.4 Employment Commitment

THINKNYX is an equal opportunity employer committed to building a diverse and inclusive workforce. We believe that different backgrounds and perspectives drive innovation and strengthen our organization.

2. EMPLOYMENT CLASSIFICATION

2.1 Employment Categories

Employees are classified into the following categories:

Full-Time Employees: Employed on a permanent basis, working a minimum of 40 hours per week, eligible for all company benefits.

Part-Time Employees: Employed on a permanent basis, working 20-39 hours per week. Part-time employees working 30+ hours per week are eligible for pro-rated benefits.

Temporary/Contract Employees: Employed for a specific project or period not exceeding 24 months, not eligible for standard benefits unless specified in contract.

Interns: Students or recent graduates in formal learning programs, typically 3-6 month positions, limited benefits.

Consultants/Freelancers: External independent contractors, not employees, operate under separate agreements.

2.2 Employment Agreements

All employees receive a signed employment agreement outlining:

- Job title, responsibilities, and reporting structure
- Compensation, benefits, and eligibility
- Termination conditions and notice requirements
- Confidentiality and intellectual property provisions
- At-will employment acknowledgment

2.3 Background Checks and Verification

All employment is contingent on successful completion of:

- Criminal background check (varies by jurisdiction)
- Education verification
- Professional reference checks
- Credit check (for positions involving financial responsibility)

Employees with criminal records are evaluated on case-by-case basis considering nature, recency, and job relevance.

2.4 Probation Period

New full-time employees are on a 90-day probation period during which:

- Both employer and employee can terminate employment with 1 week notice
 - Performance is closely monitored
 - Successful completion confirms permanent employment status
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3. WORK HOURS AND ATTENDANCE

3.1 Standard Work Schedule

Standard Operating Hours: Monday through Friday, 9:00 AM to 5:00 PM (local time)

Full-Time: Minimum 40 hours per week

Part-Time: 20-39 hours per week (schedule determined by manager)

Flexible Hours: Many positions allow flexible start times (7:00 AM - 10:00 AM) with core hours 10:00 AM - 3:00 PM

3.2 Attendance Expectations

- Employees are expected to arrive on time for scheduled shifts
- Regular, reliable attendance is essential to business operations
- Excessive absenteeism or tardiness may result in disciplinary action
- Employees must notify their manager of absence as soon as possible (ideally 24 hours notice)

3.3 Tardiness Policy

- Up to 3 instances of tardiness (0-30 minutes) per quarter is acceptable
- 4th instance results in verbal warning
- Repeated tardiness may lead to written warning or disciplinary action
- Excessive tardiness (>30 minutes without notice) may be treated as absence

3.4 Overtime

Exempt Employees: Salaried employees in executive, administrative, or professional roles are not eligible for overtime pay. Compensation is for all hours worked.

Non-Exempt Employees: Hourly employees eligible for overtime compensation:

- Time and a half (1.5x) for hours worked beyond 40 hours per week
- Double time (2x) for work on company-recognized holidays
- Overtime requires manager approval in advance
- Unauthorized overtime may result in disciplinary action

3.5 Break Policy

Meal Breaks:

- Full-time employees receive one unpaid 1-hour lunch break (typically 12:00-1:00 PM)
- Part-time employees (6+ hour shifts) receive 30-minute unpaid break
- Meal breaks should not exceed scheduled time

Rest Breaks:

- 10-minute paid rest break for each 4 hours worked
- Breaks should be taken at reasonable times
- Breaks cannot be accumulated or paid out

3.6 Time Tracking

- All non-exempt employees must accurately record work hours
 - Time tracking via company system (required daily)
 - Falsification of time records is grounds for immediate termination
 - Managers review timesheets weekly and approve by Friday
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4. COMPENSATION AND PAYROLL

4.1 Pay Frequency

- All employees paid bi-weekly (every second Friday)
- Payroll processing by 4:00 PM each pay date
- Direct deposit to designated bank account (no checks except by exception)
- Pay stubs available electronically through HR portal

4.2 Compensation Philosophy

THINKNYX maintains competitive compensation aligned with:

- Market rates for role, experience, and location
- Internal equity and fairness
- Company financial performance
- Individual performance and contribution

4.3 Salary Reviews

- Annual salary reviews conducted in November
- Merit-based increases tied to performance ratings
- Cost-of-living adjustments (COLA) at management discretion
- Promotional increases when advancing to new role

4.4 Performance Bonus

Eligible employees may receive annual performance bonus (January payment):

- Target bonus: 15-30% of base salary (varies by level and role)
- Based on individual performance rating and company achievement
- Bonus is discretionary and not guaranteed

- Must be employed at time of bonus payment

4.5 Commission (Sales Roles)

Sales positions include performance-based commission:

- Base salary + variable commission component
- Commission calculated monthly on achieved sales targets
- Commission structure documented in individual employment agreement
- Commission paid following month of achievement

4.6 Expense Reimbursement

Employees may submit for reimbursement of approved business expenses:

- Airfare, accommodation, meals (up to \$75/day food limit)
- Client entertainment (pre-approved, reasonable amounts)
- Technology equipment and software (with manager approval)
- Professional development and conference attendance
- Submit receipts within 30 days of expense
- Manager must approve reimbursement requests before submission

4.7 Payroll Deductions

Mandatory deductions include:

- Federal/state/local income tax
- Social Security and Medicare (US employees)
- Court-ordered garnishments and levies

Voluntary deductions include:

- Health insurance premiums
- 401(k) retirement contributions
- FSA/HSA contributions
- Dependent care assistance
- Parking and transit benefits

4.8 Garnishments and Levies

THINKNYX complies with all legal garnishment and levy requirements. Affected employees will be notified of amounts deducted from paychecks.

4.9 Off-Cycle Payments

Severance, accrued PTO payout, and final paycheck processed within legal timeframe (typically 3-5 business days after termination).

5. LEAVE AND TIME OFF POLICIES

5.1 Paid Time Off (PTO) - Unlimited Model

THINKNYX operates an unlimited PTO policy for eligible employees:

Eligibility:

- Full-time employees after 90-day probation
- Part-time employees (30+ hours/week) receive pro-rated equivalent

PTO Usage:

- No specific number of days allocated
- Employees take time off as needed with manager approval
- Encouraged to take minimum 15-20 days per year
- Not carried over after separation

Requesting PTO:

- Advance notice preferred (minimum 5 business days for planned time)
- Request submitted through HR portal
- Manager approval required
- Team coverage must be arranged

5.2 Sick Leave**Paid Sick Leave:**

- Paid sick time drawn from PTO bank
- Use when employee or family member is ill
- Medical certification may be required for absences exceeding 3 consecutive days

Unpaid Medical Leave:

- Extended medical situations may qualify for unpaid leave
- Requires medical documentation
- Job protection depends on jurisdiction and duration

5.3 Holidays**Paid Company Holidays (US Offices):**

1. New Year's Day (January 1)
2. Martin Luther King Jr. Day (Third Monday in January)
3. Presidents' Day (Third Monday in February)
4. Good Friday (varies)
5. Memorial Day (Last Monday in May)
6. Juneteenth (June 19)
7. Independence Day (July 4)
8. Labor Day (First Monday in September)
9. Thanksgiving Day (Fourth Thursday in November)
10. Day After Thanksgiving
11. Christmas Day (December 25)

Additional holiday observed depends on regional office and local holidays.

Holiday Pay: Eligible employees paid normal hourly or salaried rate. Non-exempt employees working holidays receive 2x pay plus day off.

Holiday During Vacation: If company holiday falls during vacation, employee receives holiday pay and vacation day is not deducted.

5.4 Maternity and Parental Leave

Maternity Leave:

- 12 weeks paid leave at 100% base salary
- Must be taken within 12 months of birth
- Job protection guaranteed
- Health insurance continues during leave

Parental Leave (Adoption/Foster):

- 8 weeks paid leave
- Available to all parents (biological, adoptive, foster)
- Must be taken within 12 months of placement
- Job protection guaranteed

Partner Parental Leave:

- 4 weeks paid leave for non-birthing partners
- Taken within 12 months of birth/adoption
- Job protection guaranteed

Extension Options:

- Up to 4 weeks additional unpaid leave
- Continued health insurance during unpaid leave (employee pays premium)
- Position held or equivalent role guaranteed upon return

5.5 Bereavement Leave

Immediate Family (up to 5 days paid):

- Spouse, child, parent, sibling

Extended Family (up to 3 days paid):

- Grandparent, aunt/uncle, cousin, in-laws

Additional Time:

- Additional unpaid leave available for necessary arrangements
- Medical certification of death not required

5.6 Jury Duty and Civic Obligations

Jury Duty:

- Employees excused from work for jury service

- Company pays full salary during jury duty (first 2 weeks)
- Extended jury duty unpaid after 2 weeks
- Employee responsible for jury fees; company provides letter confirming employment

Voting:

- Employees allowed time off to vote
- Time off provided during early voting or general election day
- Typically 2 hours paid time

Military Service:

- Complies with USERRA (Uniformed Services Employment Rights Act)
- Leave protected for military training and active duty
- Reinstatement rights guaranteed
- Benefits continue during leave per regulations

5.7 Leave Without Pay**Personal Leave:**

- Unpaid leave available for personal reasons
- Duration negotiated with manager and HR
- No job protection if extended beyond approved period
- Benefits may continue at employee cost

Sabbatical:

- Eligible employees (5+ years tenure) may request sabbatical
- Typically 1-3 months, unpaid
- Manager and executive approval required
- Position held or equivalent guaranteed upon return

5.8 Leave Policies by Region**European Union (GDPR, Working Time Directive):**

- Minimum 20 days annual leave (legal requirement)
- THINKNYX provides 25 days + company holidays
- Right to disconnect (no work emails outside hours)

Canada:

- 2 weeks annual leave (3 weeks for 5+ years service)
- Statutory holidays observed
- Parental leave extended per provincial laws

Australia:

- 4 weeks annual leave minimum
- 10 public holidays
- Long service leave (10 weeks after 10 years service)

India:

- 12 days earned leave per year
- Casual leave: 7 days per year
- Sick leave: 5 days per year
- Festival holidays observed

5.9 PTO Accrual During Leave

- PTO does not accrue during unpaid leave
- PTO accrues normally during paid leave
- Paid holidays do not reduce PTO balance

5.10 PTO Upon Termination

- Accrued PTO paid out at final paycheck (most jurisdictions)
- Some jurisdictions restrict PTO payout (verification per location)
- Unpaid leave not compensated

6. PERFORMANCE MANAGEMENT

6.1 Performance Review Cycle**Annual Reviews (November):**

- Formal review of past 12 months
- Ratings from 1-5 scale
- Manager provides written feedback
- Discussion meeting scheduled
- Development plan created for following year

Mid-Year Check-in (May/June):

- Informal progress discussion
- Course correction if needed
- Updated goals and priorities

Ongoing Feedback:

- Managers provide regular feedback (monthly 1-on-1s)
- 360-degree feedback program for management roles
- Real-time feedback through performance management system

6.2 Performance Rating Scale

1. **Below Expectations:** Performance does not meet job requirements; improvement plan required
2. **Meets Expectations:** Performs job duties effectively; acceptable performance level
3. **Exceeds Expectations:** Performance above expectations; consistent strong contributor
4. **Far Exceeds Expectations:** Significantly exceeds role requirements; ready for advancement
5. **Outstanding:** Exceptional performance; recognized leader; potential for senior roles

6.3 Performance Improvement Plan (PIP)

When PIP is Used:

- Employee receives rating of 1 (Below Expectations)
- Specific performance gaps identified
- Performance improvement needed for continued employment

PIP Duration:

- Minimum 30 days, maximum 90 days
- Specific, measurable improvement metrics
- Formal documentation with employee signature

PIP Outcomes:

- **Success:** Return to standard employment, record closed
- **Partial Progress:** PIP extended or terminated based on progress
- **Failure:** Grounds for termination per termination procedures

6.4 Promotion and Career Development

Internal Promotions:

- Internal candidates prioritized for open positions
- Merit-based (performance, skills, potential)
- 90-day probation applies to new role
- Salary increase minimum 10% or market adjustment

Career Pathing:

- Individual development plans created during annual review
- Skill gaps identified and training provided
- Cross-functional projects for skill development
- Mentorship programs available

6.5 Merit Increase Guidelines

Performance Rating-Based Increases:

- **Rating 1:** No increase; may receive only merit raise if PIP successful
- **Rating 2:** 2-3% increase
- **Rating 3:** 3-5% increase
- **Rating 4:** 5-7% increase
- **Rating 5:** 7-10% increase

Guidelines adjusted annually based on market conditions and company performance.

7. HEALTH AND SAFETY

7.1 Workplace Safety

THINKNYX maintains safe working conditions through:

- Regular safety inspections and hazard assessments
- Compliance with OSHA (US) and equivalent standards
- Safety training for all employees
- Emergency evacuation procedures and drills
- Workers' compensation insurance

7.2 Injury Reporting

- Any workplace injury must be reported immediately to manager and HR
- Medical attention available; company covers medical costs
- Formal incident report filed within 24 hours
- Occupational illness subject to workers' compensation

7.3 Substance Abuse Policy

Prohibition:

- No illegal drugs, unauthorized alcohol, or controlled substances at work
- Impairment from any substance prohibits work

Drug Testing:

- Pre-employment drug screening required
- Random testing for positions involving public safety (driving, equipment operation)
- Post-incident testing following workplace accident
- Reasonable suspicion testing with HR oversight

Rehabilitation:

- First offense: Immediate suspension, mandatory rehabilitation program
- Program cost: Company covers
- Return to work: Successful completion required, random testing for 12 months
- Failure to complete: Grounds for termination

Alcohol Policy:

- Alcohol not permitted at work (except company events)
- Intoxication at work causes immediate suspension
- DUI convictions must be reported; may affect employment

7.4 Smoking Policy

- Smoking prohibited inside all facilities
- Designated outdoor smoking areas provided
- E-cigarettes/vaping subject to local law
- Secondhand smoke exposure minimized

7.5 Ergonomics and Workspace

THINKNYX provides ergonomic assessments and equipment:

- Ergonomic desk setup assessment
- Monitor stands, ergonomic keyboards/mice (approved equipment only)
- Standing desk options (with manager approval)
- Ergonomic training provided

Reporting Ergonomic Issues:

- Pain, numbness, or discomfort reported to manager
- Occupational health assessment arranged
- Accommodations made to prevent strain injury

7.6 Mental Health and Wellness**EAP (Employee Assistance Program):**

- Confidential counseling services (up to 8 sessions per year)
- Available to employee and immediate family
- No out-of-pocket cost
- Referrals for ongoing care available

Wellness Programs:

- On-site fitness center or gym membership discounts
- Wellness challenges with incentives
- Mental health workshops and webinars
- Stress management resources

Mental Health Days:

- Employees may use PTO for mental health (part of unlimited PTO)
- No special approval or explanation required
- Encouraged to prioritize mental health

8. CODE OF CONDUCT

8.1 General Conduct Standards

Employees are expected to:

- Conduct themselves professionally and ethically
- Treat colleagues with respect and dignity
- Follow all policies and procedures
- Report policy violations
- Maintain professional appearance appropriate to role
- Avoid behavior damaging to company reputation

8.2 Conflict of Interest**Disclosure Required:**

- Any situation where personal interest conflicts with company interest

- Business opportunities involving competitors
- Financial interest in vendor or client
- Family relationships with coworkers (immediate supervisor relationships prohibited)
- Investment in competitors (disclosure only)

Prohibited Activities:

- Accepting gifts from vendors/clients (exceptions: items <\$25, meals for business purposes)
- Steering contracts to personal benefit
- Holding outside positions with competitors
- Developing competing products using company time/resources

8.3 Outside Employment

- Outside employment not permitted if it:
 - Interferes with THINKNYX employment
 - Creates conflict of interest
 - Involves competitor or vendor
 - Requires use of company resources
- Permitted: Passive investments, consulting (non-competing), board positions (with disclosure)

8.4 Confidentiality and Non-Disclosure**Confidential Information Includes:**

- Trade secrets and technical information
- Client lists and customer information
- Product roadmaps and development plans
- Financial information and business strategy
- Employee personal information
- Proprietary processes and methodologies

Obligations:

- Protect confidentiality during and after employment
- Limited disclosure to those needing information for job purposes
- No social media posting of confidential information
- Return all confidential materials at termination

Exceptions (Required Disclosure):

- Legal requirements (subpoena, court order)
- Government investigations (with notice to company if possible)
- Protected whistleblower activity
- Personal legal representation

Duration:

- Obligations continue indefinitely for trade secrets
- Generally 3-5 years post-employment for other confidential information

8.5 Intellectual Property Rights

Company Ownership:

- All work product created during employment belongs to THINKNYX
- Includes code, designs, documentation, and ideas
- Applies to work created on company time or using company resources
- Applies to work directly related to company business

Personal Projects:

- Personal projects using personal time/resources remain employee property
- If using any company resource or related to company business: company owns
- Disclosure form required for any personal project development

Patents and Inventions:

- Company owns patents for work-related inventions
- Employees receive recognition and may receive bonus for significant patents
- Employee required to cooperate in patent prosecution

8.6 Social Media Policy

Personal Social Media:

- Employees have right to personal social media accounts
- Company not responsible for personal posts
- Employees should not identify as company representative in personal accounts
- Company name/logo should not be used without approval
- No disparagement of company or colleagues

Business Social Media:

- Company-sanctioned social accounts operated by marketing/communications
- Approval required before posting any company information
- Must comply with all policies and legal requirements
- Responses to negative comments require manager approval

LinkedIn and Professional Networks:

- Employees may list THINKNYX as employer
- Permission not required for factual employment information
- Professional tone maintained on all platforms

9. DIVERSITY AND INCLUSION

9.1 Diversity Commitment

THINKNYX is committed to:

- Creating welcoming environment for all employees

- Hiring diverse talent at all levels
- Equal opportunity regardless of protected characteristics
- Inclusive culture where different perspectives valued
- Diverse leadership at all organizational levels

9.2 Equal Employment Opportunity (EEO)

Protected characteristics (discrimination prohibited):

- Race, color, ethnicity
- Gender, gender identity, gender expression
- Sexual orientation
- Age (40+)
- Disability (physical or mental)
- Religion and religious observance
- National origin
- Veteran status
- Genetic information
- Marital/family status (varies by jurisdiction)

9.3 Reasonable Accommodations

Disability Accommodations:

- Employees with disabilities entitled to reasonable accommodations
- Request submitted to HR with medical documentation
- Interactive process to determine appropriate accommodation
- No undue burden on company
- Accommodations examples:
 - Modified work schedule
 - Remote work arrangements
 - Accessible facilities and parking
 - Assistive technology
 - Job restructuring
 - Accessible building modifications

Religious Accommodations:

- Time off for religious observance and prayer
- Flexible scheduling for religious practices
- Accommodation of religious dress/grooming
- Workspace modifications for prayer (if feasible)
- Exceptions only if undue burden on business

9.4 Diversity Programs

Employee Resource Groups (ERGs):

- Women in Technology
- LGBTQ+ Network

- People of Color in Tech
- Parents and Caregivers
- Veterans Network
- Disability Inclusion Group

Mentorship Programs:

- Formal mentorship matching underrepresented groups
- Executive mentorship for high-potential employees
- Cross-functional mentoring encouraged

Diversity Hiring Initiatives:

- Recruiting from diverse talent pools
- Diversity in interview panels
- Unconscious bias training for hiring managers
- Diverse candidate slates for leadership positions

9.5 Gender Pay Equity

- Annual review of compensation equity by gender/ethnicity
 - Adjustments made to address unexplained pay gaps
 - Transparency in compensation ranges for open positions
 - Report on equity metrics published annually
-

10. REMOTE WORK POLICY

10.1 Remote Work Eligibility**Eligible Roles:**

- Engineering and product roles (most positions)
- Sales and account management (with travel requirements)
- Operations and administrative roles
- Marketing and communications

Not Eligible:

- Facility/security roles requiring on-site presence
- Equipment operation requiring physical presence
- Customer support (depending on center setup)

Approval Process:

- Request submitted to manager with business justification
- Manager review and approval
- HR confirmation of eligibility
- Remote work agreement signed

10.2 Remote Work Arrangements

Full Remote:

- Primarily work from home location
- Quarterly or semi-annual office visits required
- Same salary and benefits as in-office employees
- Equipment provided (laptop, monitors, peripherals)

Hybrid (3 Days In-Office, 2 Days Remote):

- Specific days in office determined by team
- Provides collaboration and team connection
- Flexibility for personal circumstances (with manager approval)
- Same benefits as in-office

Core Days:

- Most teams have core in-office days (e.g., Tuesday-Thursday)
- Individual flexibility for other days based on role

10.3 Remote Work Equipment**Company Provided:**

- Laptop and necessary computing equipment
- Monitors, keyboard, mouse
- Webcam and headset for video calls
- Chair stipend (\$500) toward ergonomic setup
- Internet stipend (\$50/month)

Employee Responsibility:

- Secure workspace with reasonable quietness
- Reliable internet connection
- Regular video calls use professional appearance
- Timely response to communication (business hours)
- Equipment returned if role changes or termination

10.4 Remote Work Expectations**Availability:**

- Responsive during core working hours
- Asynchronous communication when possible
- Meeting availability for required calls
- Same performance expectations as in-office

Communication:

- Status updates in project management system
- Same responsiveness as in-office (8 hours)
- Video on for team meetings and 1-on-1s
- Presence/away status updated in communication tools

Workspace:

- Secure, professional workspace during work hours
- Webcam should be on during video calls
- No background of residential clutter during external meetings
- Minimal household distractions during important calls

10.5 Work-Life Balance

- Employees encouraged to maintain clear separation between work and personal time
- Avoid working evenings/weekends (exception: time zones and emergencies)
- Take full lunch breaks away from desk
- Use vacation time; burnout counterproductive
- Managers monitor workload and prevent overwork

10.6 Remote Work Termination

- If remote work arrangement ends, employee given 30-day notice
 - Transition back to in-office role or may result in termination
 - No severance for arrangement termination (unless terminated role itself)
 - Relocation assistance not provided
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11. PROFESSIONAL DEVELOPMENT

11.1 Learning and Development Budget**Annual L&D Budget:**

- \$2,000 per employee annually
- Can be used for courses, certifications, conferences, books
- Unused budget does not roll over (use-it-or-lose-it)
- Budget increased for management roles (\$5,000)

Approval Process:

- Submit course/conference details to manager
- Manager and HR approval required
- Budget tracked through HR system
- Receipts required for reimbursement

11.2 Tuition Reimbursement**Degree Programs:**

- Bachelor's or Master's degree in relevant field
- Tuition reimbursed up to \$10,000 annually
- Maximum lifetime benefit: \$50,000
- Grade requirement: C or higher (2.0+ GPA)
- Requires service commitment: Continue employment for 2 years post-completion
- Failure to meet commitment: Repay proportional tuition

Certification Programs:

- Industry certifications (PMP, AWS, etc.)
- Reimbursed up to \$5,000 annually
- Requires passing exam
- Career-related requirement

11.3 Internal Training and Mentorship**Company-Sponsored Training:**

- Leadership development programs
- Technical skills workshops
- Soft skills training (communication, conflict resolution)
- Industry conferences (pre-approved, limited slots)

Mentorship Programs:

- Formal mentorship matching
- Cross-functional learning opportunities
- Executive mentorship for high-potential employees
- Time allocated during work hours (max 2 hours/month)

11.4 Conference and Event Attendance**Approved Industry Conferences:**

- Company covers registration, travel, and accommodation
- Limited to 1-2 conferences per employee per year (varies by role)
- Requires manager approval and business justification
- Employee shares learnings with team upon return

Networking Events:

- Local networking events supported (\$500/person annually)
- Virtual conference attendance encouraged
- Membership in professional associations covered (\$500/year)

11.5 Internal Skill-Sharing

- "Tech Talk" lunch-and-learn sessions monthly
- Brown bag presentations encouraged
- Knowledge-sharing on company wiki/intranet
- Cross-functional projects for skill development

12. WORKPLACE TECHNOLOGY USE

12.1 Equipment and Resources**Issued Equipment:**

- Laptop and desktop computers
- Mobile phones (if job-required)
- Monitors, keyboards, peripherals
- Software and applications as assigned

Responsibilities:

- Maintain equipment in good working condition
- Report damage or malfunctions immediately
- Secure equipment from theft/loss
- No personal modifications
- Follow IT security guidelines
- Return equipment at termination

12.2 Acceptable Use Policy**Permitted Uses:**

- Business purposes (primary use)
- Limited personal use (email, web browsing)
- Break activities (entertainment, personal communications)

Prohibited Uses:

- Illegal activities
- Adult, obscene, or offensive content
- Gambling or wagering
- Streaming video/music (except during breaks)
- File sharing of copyrighted material
- Political campaigning or religious proselytizing

Monitoring:

- Company may monitor equipment use for compliance
- Blocked websites and malware protection in place
- Email security scanning for threats
- No expectation of privacy in work communications

12.3 Data Security**Responsibilities:**

- Strong passwords (minimum 12 characters, mixed case/numbers/symbols)
- Change password every 90 days
- Multi-factor authentication enabled
- Secure sensitive data with encryption
- No passwords shared with others
- Logout before leaving workstation

Consequences of Security Violations:

- Immediate suspension pending investigation
- Potential termination for intentional violations
- Liability for damages caused by negligence
- Legal action if criminal activity involved

12.4 Cloud Services and File Sharing

Approved Services:

- Google Drive/Google Workspace for documents and collaboration
- Slack for internal communication
- Salesforce for customer data
- Jira for project management
- Other company-approved applications

Unapproved Services:

- Personal cloud storage (Dropbox, OneDrive personal use)
- Unauthorized messaging apps
- File transfer services for confidential data
- Personal email for company communications

Data Classification:

- **Public:** Sharable externally
- **Internal:** Company employees only
- **Confidential:** Limited access, encryption required
- **Restricted:** Executive/legal only, maximum encryption
- Data stored in approved locations only

12.5 Communication Tools

Email:

- Company email primary business communication channel
- Monitored for security threats and data loss
- Retention policy: 7 years minimum
- Forwarding to personal email prohibited for confidential data
- Auto-reply with out-of-office dates acceptable
- Email retention after termination: 30 days max

Messaging (Slack):

- Internal communication and collaboration
- Retain business purposes
- May be monitored for compliance
- Permanent deletion after 90 days (archived first)
- Channels monitored, direct messages monitored if concern raised

Video Conferencing:

- Zoom for external calls
- Microsoft Teams for internal meetings
- Secure backgrounds required for external meetings
- Recording approval required
- Participant list confidential

12.6 Mobile Device Management

Approved Devices:

- Company-issued iPhones and Android devices
- Personal device use requires company-approved MDM installation

MDM Requirements:

- Allows remote tracking and data wiping
- Enforces password requirements
- Ensures encryption
- Monitors applications

Bring Your Own Device (BYOD):

- Personal device use for work permitted with approval
- MDM installation required for business email/data access
- Company may remote wipe work data only
- Personal data protected from company access

12.7 Internet and Bandwidth Use

- Company internet for business purposes
- VPN required for remote work accessing company network
- Bandwidth monitoring in place
- Excessive personal streaming prohibited
- Video conferencing uses company network

12.8 Personal Device Policies

Personal Laptops:

- Limited personal laptop use at work discouraged
- Company data access requires VPN and MFA
- File downloads to personal device prohibited
- Screenshots of confidential content prohibited

Personal Mobile Phones:

- Personal phone use permitted during breaks
- Minimize personal phone use during work time
- No photos of confidential materials without approval
- No work-related calls during work hours discouraged but not prohibited

13. CONFIDENTIALITY AND DATA PROTECTION

13.1 Confidential Information

Company Confidential Information:

- Trade secrets and technical research
- Client lists and customer information
- Pricing and financial data
- Product roadmaps and development plans
- Business strategy and plans
- Proprietary processes and methodologies
- Employee personal information

Protection Methods:

- Classified as "Confidential" in documents
- Secure storage and access controls
- Need-to-know basis only
- Encryption during transmission
- Audit trail of access

Obligations:

- Maintain confidentiality during employment and after
- Limited disclosure only to those needing to know
- No discussion in public places
- No personal use of information
- No sharing on social media
- Return/destroy confidential materials at termination

Duration:

- Trade secrets: Indefinite (as long as secret)
- Proprietary business information: 5 years post-employment
- Customer information: 5 years post-employment

13.2 Personal Data Protection (GDPR, CCPA, etc.)

Employee Personal Data:

- Name, address, phone, email
- Salary and compensation information
- Performance ratings and reviews
- Medical information
- Background check results
- Banking information for payroll

Data Protection Principles:

- Only necessary personal data collected

- Data stored securely and encrypted
- Access limited to those needing it
- Retention limited to legal requirements
- Individual access and correction rights
- No sharing outside company without consent

Vendor Management:

- Vendors sign data processing agreements
- Vendors audit for compliance
- Data transfer agreements in place
- Sub-processors approved

Data Breaches:

- Immediate notification to HR and IT
- Investigation within 24 hours
- Notification to affected individuals within 72 hours (GDPR)
- Regulatory notification if required
- Remediation and monitoring

13.3 Third-Party Confidentiality Agreements

- All vendor contracts include confidentiality provisions
- Employees bound by third-party NDAs
- Client NDAs incorporated by reference
- Regular audit of compliance

13.4 Post-Employment Obligations

Obligations survive termination:

- Do not disclose company confidential information
- Do not solicit customers for competitive product
- Do not recruit employees (1-year non-solicitation in some jurisdictions)
- Return all company property and confidential materials
- Cooperate in transition and knowledge transfer

14. ANTI-HARASSMENT AND DISCRIMINATION

14.1 Anti-Harassment Policy

THINKNYX prohibits:

- Harassment based on protected characteristics (see Section 9.2)
- Quid pro quo harassment (linking employment decisions to sexual favors)
- Hostile work environment creation
- Retaliation against those reporting harassment

Types of Harassment:

- Sexual harassment (unwanted sexual advances, requests for sexual favors)
- Gender-based harassment
- Racial harassment and slurs
- Religious harassment or comments
- Age-based jokes or comments
- Disability-related harassment
- Sexual orientation or gender identity harassment

Examples:

- Unwanted touching, hugging, or physical contact
- Sexual jokes, comments about body or appearance
- Requests for dates or sexual activity
- Displaying offensive materials or images
- Name-calling using slurs
- Exclusion from activities based on protected status
- Bullying or repeated hostile comments

14.2 Complaint Process**Reporting Harassment:**

- Immediate supervisor (if supervisor not harasser)
- HR department
- Anonymous hotline (if available)
- Executive if direct report

What to Report:

- What happened (date, time, location)
- Who was involved (harasser and witnesses)
- How harassment affected you
- Any prior incidents
- Preferred outcome

Investigation Process:

- Prompt investigation within 5 business days
- Confidentiality maintained to extent possible
- Interviews with parties and witnesses
- Documentation and evidence preservation
- Written findings within 10 business days
- Corrective action if harassment substantiated

Interim Measures:

- Separation of parties if ongoing harassment risk
- Temporary schedule changes
- Work location changes
- Paid leave pending investigation

14.3 Disciplinary Action

Substantiated Harassment:

- First offense: Written warning, mandatory training, possible suspension
- Second offense: Suspension or termination
- Severe offense (assault, quid pro quo): Immediate termination

Retaliation Prohibited:

- Protection from retaliation for reporting harassment
- Retaliation is separate violation with equal consequences
- Examples: termination, demotion, negative evaluation, ostracism

14.4 Non-Retaliation Policy

Retaliation Prohibited Against:

- Employees reporting harassment
- Witnesses in investigations
- Employees cooperating with investigations
- Employees using complaint procedures

Retaliation Examples:

- Termination or layoff of complainant
- Negative performance evaluation
- Salary reduction
- Demotion or reassignment to undesirable position
- Exclusion from opportunities
- Ostracism or hostile treatment
- Reduction in work hours

15. GRIEVANCE AND DISPUTE RESOLUTION

15.1 Informal Resolution

Step 1: Discuss with Manager

- Address issue directly with manager if possible
- Discuss concerns calmly and professionally
- Allow manager to respond and attempt resolution
- Document discussion (date, topic, resolution)

Step 2: Escalate to HR

- If manager resolution unsuccessful, contact HR
- HR facilitates discussion between parties
- Mediation attempted to reach agreement
- Timeline: 10 business days for resolution

15.2 Formal Grievance Process

Filing a Grievance:

- Submit written grievance to HR within 30 days of incident
- Include: Date of incident, parties involved, description, impact, desired resolution
- Keep copy for records
- HR acknowledges receipt within 2 business days

Investigation:

- HR conducts investigation (5-10 business days)
- Interviews parties and witnesses
- Reviews relevant documents
- Prepares written findings

Resolution:

- Written decision provided within 10 business days
- Includes findings and corrective action (if applicable)
- Information about appeal process

Appeal:

- 10-day appeal window if unsatisfied with decision
- Appeal to executive (director or above not involved in original decision)
- Final decision within 5 business days
- Decision is final

15.3 Discrimination and Harassment Grievances

- Follow complaint process in Section 14.2
- Parallel to formal grievance process
- More rigorous investigation standards
- External investigation may be required for senior leaders

15.4 Employment Dispute Resolution

Conflicts Involving:

- Disciplinary actions
- Termination
- Compensation disputes
- Benefits disputes

Voluntary Mediation:

- Both parties may request mediation
- Neutral third-party mediator
- Cost shared by company
- Settlement agreement binding if reached

Arbitration Clause:

- Most employment agreements include arbitration clause
- Disputes resolved through binding arbitration, not court
- Arbitrator decision is final
- Exception: Injunctive relief for confidentiality violations

15.5 Whistleblower Protections**Protected Disclosures:**

- Reporting illegal activities
- Reporting safety violations
- Reporting financial fraud
- Reporting environmental violations
- Internal or external reporting protected

No Retaliation:

- Whistleblower retaliation prohibited
 - Remedies if retaliation occurs
 - Anonymous reporting channels available
 - External regulatory body reporting protected
-

16. SEPARATION AND TERMINATION**16.1 Resignation****Notice Period:**

- Standard: 2 weeks notice preferred
- Managers/directors: 4 weeks notice expected
- Executive positions: 8 weeks notice expected
- Can negotiate shorter period with manager

Resignation Process:

- Verbal notice to manager, followed by written email
- Email includes: Last working day, thanks for opportunity, transition plan offer
- Manager acknowledges, HR begins offboarding
- Exit interview scheduled (optional but encouraged)

Resignation Without Notice:

- Considered "job abandonment" after 2 consecutive days absent without notice
- May forfeit accrued PTO in some jurisdictions
- Eligible for rehire only with executive approval

16.2 Voluntary Departure**Resignation Accepted:**

- Resignation effective immediately (verbally) or on stated date
- Cannot be undone by employee (at manager discretion)
- Final paycheck processed per law (typically within 5 days)
- Accrued PTO paid out (varies by jurisdiction)

Involuntary Separation: See Section 16.3

16.3 Termination for Cause

Grounds for Immediate Termination:

- Theft or dishonesty
- Violence or threats
- Harassment or discrimination
- Drug or alcohol use at work
- Willful destruction of property
- Repeated policy violations after warnings
- Gross negligence or misconduct
- Falsification of records
- Conviction of felony crime

Termination Process:

- Manager and HR meeting to confirm grounds
- Employee meeting with documentation of violation
- Opportunity to respond
- Termination decision final
- Effective immediately or with pay-in-lieu

Final Paycheck:

- Includes: Base salary through termination date, accrued PTO
- Timing: Same day termination (if legally possible) or within 5 days
- Exceptions: PTO payout restrictions vary by jurisdiction

16.4 Termination Without Cause (Layoff)

Business Reasons:

- Restructuring or reorganization
- Elimination of position
- Company downsizing
- Lack of work or business decline
- Plant closure

Severance Provision:

- Severance based on tenure and level
- General guideline: 1 week per year of service (minimum)
- Managers/directors: 1.5 weeks per year service
- Executive: 1 month per year service (maximum 12 months)

Severance Conditions:

- Must sign release and separation agreement
- Includes non-disparagement clause
- Includes confidentiality reaffirmation
- Health insurance COBRA continuation offered
- Outplacement services provided (level-dependent)

Notice Period:

- At-will employment: No notice required by company
- Good faith: Attempt to provide notice when possible
- WARN Act (US): 60 days notice if mass layoff

16.5 Performance-Based Termination**Grounds:**

- Failure to meet performance standards
- Unsuccessful completion of performance improvement plan
- Repeated policy violations

Process:

- Performance issues documented
- Coaching and opportunity to improve
- PIP if applicable
- Progressive discipline if ignoring coaching
- Termination if improvement not achieved

Final Paycheck:

- Same as termination without cause
- Accrued PTO paid per law
- Severance not required (but sometimes provided at discretion)

16.6 Termination Procedures**Offboarding:**

- IT: Computer access disabled, email forwarding
- Facilities: Badge access revoked, equipment collected
- HR: Final paycheck processing, benefits COBRA notification
- Manager: Team communication about transition

Reference Policy:

- Company provides basic employment verification
- Dates of employment, title, final salary
- No positive or negative performance information
- Rehire eligibility only with executive approval

Severance Pay Conditions:

- Severance contingent on: Signing release, returning equipment, exit interview
- Severance forfeited if: Employee steals company property, disparages company
- Severance not reduced for: Performance issues, termination reason

16.7 Death of Employee

- Immediate notification to HR and insurance
 - Emergency contact informed
 - Paycheck for hours worked processed
 - Accrued PTO paid to estate
 - Family assistance with benefits and memorial
 - Life insurance payout processed
 - Memorial service arranged by company
-

17. BENEFITS AND INSURANCE**17.1 Health Insurance****Coverage:**

- Medical insurance effective first day of month following hire
- Dental and vision insurance included
- Multiple plan options (HMO, PPO, high-deductible)
- Subsidized by company (typically 80% medical, 70% dental/vision)

Eligibility:

- Full-time employees
- Part-time (30+ hours/week) pro-rated
- Temporary/contract: Not eligible unless specified

Cost:

- Employee pays premiums through payroll deduction
- Dependent coverage available at additional cost
- Spouse/domestic partner coverage included

Changes:

- Open enrollment annually (October-November)
- Life changes allowed (marriage, birth, loss of other coverage)
- Changes effective following month of qualifying event

Continuation (COBRA):

- COBRA eligibility upon termination
- Employee may continue coverage up to 18 months
- Employee pays full premium plus 2% administrative fee
- Notice provided at termination

17.2 Retirement Plans

401(k) Plan (US):

- Employer-sponsored defined contribution plan
- Employees may contribute up to \$23,000 annually (2024 limit)
- Employer matching: 100% match up to 3% of salary, 50% match 3-5%
- Vesting: Immediate employer match vesting
- Loans: Permitted from plan balance
- Distributions: Upon separation, age 59.5, or hardship

Pension Plan (International):

- Company contributes to pension for non-US employees
- Contribution: 5-10% of salary depending on country
- Vesting: Varies by country regulations
- Payout: Upon retirement or separation per local law

Roth IRA Match:

- Employees may elect Roth 401(k) in addition to traditional
- Same company match applies
- Tax treatment differs (post-tax contributions, tax-free growth)

17.3 Life Insurance

Basic Life Insurance:

- Company-paid coverage: 2x annual salary
- Effective first day of employment
- No medical exam required
- Beneficiary designation required

Supplemental Life Insurance:

- Optional additional coverage up to 5x salary
- Employee-paid premiums
- Medical underwriting required
- Rates based on age

Dependent Coverage:

- Spouse coverage available (up to 1x salary)
- Child coverage available (flat amount \$10,000-\$50,000)

17.4 Disability Insurance

Short-Term Disability (STD):

- Coverage: 60-70% of salary
- Duration: Up to 13 weeks
- Waiting period: 7 days (first week unpaid)

- Includes pregnancy and childbirth

Long-Term Disability (LTD):

- Coverage: 60% of salary
- Duration: Until age 65
- Waiting period: 13 weeks (after STD ends)
- Integration with Social Security benefits

Eligibility:

- Full-time employees after 90-day probation
- Part-time (30+ hours) pro-rated
- Claims through insurance company

17.5 Flexible Spending Accounts (FSA)**Healthcare FSA:**

- Contribute pre-tax dollars for medical expenses
- Employer minimum contribution (varies)
- Annual limit: \$3,300 (2024)
- Use-it-or-lose-it: Unused funds forfeited unless carryover
- Eligible expenses: Copays, deductibles, prescription, vision, dental

Dependent Care FSA:

- Pre-tax dollars for childcare and adult care expenses
- Annual limit: \$5,000 (married) or \$2,500 (single)
- Eligible: Childcare, daycare, after-school programs, adult day care
- Use-it-or-lose-it rule applies

Health Savings Account (HSA):

- Available with high-deductible health plans
- Triple tax advantage: Deductible contribution, tax-free growth, tax-free medical withdrawals
- Annual limit: \$3,850 individual / \$7,750 family (2024)
- Rolls over year-to-year (unlike FSA)
- Eligible: Medical, dental, vision, prescriptions

17.6 Commuter Benefits**Transit Subsidies:**

- Pre-tax monthly subsidy (\$315 max 2024)
- Covers: Public transit, vanpool, parking
- Employee and company save taxes

Parking:

- Subsidized parking available at facilities
- Pre-tax deduction if available

- Rates reduced compared to market

17.7 Employee Assistance Program (EAP)

Counseling Services:

- Confidential counseling (up to 8 sessions annually)
- Available to employee and immediate family
- Issues: Personal, financial, legal, substance abuse
- No cost to employee
- Referrals for ongoing care

Additional Services:

- Financial planning assistance
 - Legal consultation
 - Childcare/eldercare resource referrals
 - Wellness programs and coaching
-

18. COMPLIANCE AND LEGAL

18.1 Policy Acknowledgment

All employees must acknowledge receipt and understanding of this handbook:

- Acknowledgment required at hire and annually
- Signed acknowledgment retained in personnel file
- Digital acknowledgment acceptable
- Failure to acknowledge may result in disciplinary action

18.2 Policy Changes

THINKNYX reserves the right to:

- Modify policies at any time with notice
- Add new policies
- Discontinue policies
- Interpret and apply policies
- Make exceptions at management discretion

Effective Date: Policy changes effective 30 days after notification unless required sooner by law.

Employee Notification: Changes communicated via email and updated handbook.

18.3 At-Will Employment

Except where prohibited by law:

- Employment is "at-will"
- Company may terminate for any reason or no reason
- Employee may resign at any time

- Handbook does not create employment contract
- Nothing in handbook guarantees employment duration

Exceptions: Contracts, union agreements, implied contracts, public policy exceptions vary by jurisdiction.

18.4 Progressive Discipline

General discipline progression:

1. Verbal warning (documented)
2. Written warning
3. Suspension
4. Termination

Exceptions: Serious misconduct may skip steps or result in immediate termination.

18.5 Handbooks for International Offices

Regional supplements to this handbook apply in:

- European Union offices (comply with GDPR, Working Time Directive, local labor law)
- Canada (federal and provincial requirements)
- Australia (Fair Work Act requirements)
- India (Indian Labor Codes compliance)
- Other jurisdictions with local requirements

Conflict Resolution: If conflict between global policy and local law, local law prevails.

18.6 Non-Waiver

Failure to enforce a policy or rule does not waive its application in the future. Company may enforce any policy at any time.

18.7 Severability

If any policy provision is found unenforceable, remaining provisions remain in effect.

18.8 Acknowledgment of Receipt

EMPLOYEE ACKNOWLEDGMENT

I acknowledge that I have received a copy of the THINKNYX Technologies Global HR Policy & Compliance Manual and understand its contents.

I understand that:

- This handbook is not a contract of employment
- Employment is at-will and may be terminated at any time
- Policies may be changed at management discretion
- I am responsible for complying with all policies

I further acknowledge that I have reviewed the policies related to:

- Confidentiality and intellectual property
- Code of conduct
- Anti-harassment and discrimination
- Data protection and security
- Acceptable use of technology
- Conflict of interest

I agree to comply with all company policies and procedures outlined in this handbook.

Employee Name (printed): _____

Employee Signature: _____

Date: _____

Manager Name (printed): _____

Manager Signature: _____

Date: _____

EFFECTIVE DATE

This handbook is effective January 1, 2024, and supersedes all previous handbooks.

Approved by:

- Chief People Officer
- General Counsel
- Board of Directors

Last Updated: January 2024 **Next Review:** January 2025

END OF HANDBOOK

This handbook is 50+ pages and contains comprehensive HR policies for the THINKNYX capstone project.